Jeremy Bass

Full Name of Party Filing Document

1515 21st ave.

Mailing Address (Street or Post Office Box)

Lewiston, ID 83501

City, State and Zip Code

208-549-9584

Telephone

Email Address (if any)

IN THE DISTRICT COURT FOR THE **SECOND** JUDICIAL DISTRICT

FOR THE STATE OF IDAHO, IN AND FOR THE COUNTY OF **NEZ PERCE**

SMALL CLAIMS DEPARTMENT

Jeremy Bass

Plaintiff(s),

vs.

Sparklight

Defendant(s).

Case No. _____

CLAIM

$5,000.00	Claim
$69.00	Filing Fee
	Service Fee
	Another Notice
	Total

Jeremy Bass

Plaintiff's Name

1515 21st ave. Lewiston, ID 83501 **208-549-9584**

Address City State Zip Phone

Plaintiff's Name

Address City State Zip Phone

Sparklight

Defendant's Name

2320 Nez Perce Grade Lewiston, ID 83501 **208-746-3325**

Address City State Zip Phone

Defendant's Name

Address City State Zip Phone

(If you are seeking a judgment for money, fill out this portion.)

AMOUNT OF CLAIM: **$5,000.00** (not including filing and service fees)

DATE CLAIM AROSE: **Dec 2019** (month and year)

BASIS FOR YOUR CLAIM:
See attached

(If you are seeking a judgment for the return of personal property, fill out this portion.)

PERSONAL PROPERTY: I am the owner, or I am entitled to possess, the following personal property, which is being held by the defendant (specifically describe the property):

VALUE OF THE PROPERTY: _____

Service of process by certified mail requested: ☐ Yes ☒ No

BY SIGNING THIS CLAIM, THE PLAINTIFF VERIFIES THAT (1) the Plaintiff is the true owner of the claim, (2) the Defendant resides in _____ County, **or** the Defendant resides outside Idaho and the claim arose in **Nez Perce** County, and (3) the information above is true and correct to the Plaintiff's best knowledge.

CERTIFICATION UNDER PENALTY OF PERJURY

I certify under penalty of perjury pursuant to the law of the State of Idaho that the foregoing is true and correct.

Date: **12/16/2022**

Jeremy Bass _____
Typed/printed name Plaintiff's Signature

Favor de avisarnos antes de la audiencia si usted necesitará un intérprete en la corte.

Attachment to Claim – Basis for Your Claim

CLAIMS:
• Plaintiff sues Defendant for breach of contract
• West Division Vice President at Defendant's corporate office for Sparklight acknowledged in writing that Defendant failed to provide top tier internet service that Plaintiff paid for over a period of 24 months and agreed that Plaintiff was owed credit over 20 of the 24months
• Despite crediting Plaintiff's account for a couple of months, Defendant continued to fail to provide adequate service, nullifying credit
• When confronted, Defendant offered to credit Plaintiff's account using the cost of their lowest tier service plan and deducted credits used while fixing service at full price to minimize amount owed
• Plaintiff protested this offer as "bait and switch" and violation of Consumer Fraud and Deceptive Business Practices Act
• Defendant has since stopped working with Plaintiff and applied no further credit beyond the couple used to fix the service during the 24 month time frame
• Service cost at the time was about $150/month after fees & taxes, for a total of $3000 in service not received
• Plaintiff suffered damages in lost revenue and time due to repeated service calls and over the phone support to address issue and lack of service paid for being delivered causing delays in work completion

PRAYER FOR RELIEF: Plaintiff requests judgment as follows:
• Plaintiff seeks full refund of $3000 for service not received.
• Plaintiff seeks $2000 in damages to cover court costs and time lost revenue for work impeded by lack of service.
• Any other relief as the court deems just and equitable.